

CONTRACT OF SECURITY SERVICES

KNOW ALL MEN BY THESE PRESENTS:

This Agreement is made and entered into by and between:

PROVINCIAL ENVIRONMENT AND NATURAL RESOURCES OFFICE (PENRO) BATANGAS is a National Government Agency, duly existing under the laws of the Republic of the Philippines, with office address at 4915 Solomon Road, Sitio Hospital, Brgy. Kumintang Ibaba, Batangas City, represented herein by **NOEL M. RECILLO**, in his capacity as OIC - Provincial Environment and Natural Resources Officer, hereinafter referred to as "**CLIENT**",

-and-

DELTA MAROON SECURITY AGENCY CORP., a security agency, organized and operating under the laws of the Republic of the Philippines with office address at 0188 Jasmin St., Rodriguez Village, Brgy. Lawa, Calamba City, Laguna, represented herein by **LIZA S. CASTILLO** in his capacity as the General Manager, hereinafter referred to as the "**CONTRACTOR**".

WITNESSETH

WHEREAS, the CLIENT desires to engage the services of a qualified, competent, licensed and independent security agency or firm;

WHEREAS, the client in compliance with the provisions of the Government Procurement Act (RA 9184) and its Implementing Rules and Regulations (IRR), contracted the services of herein CONTRACTOR;

NOW THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree to the following terms and conditions:

TERMS AND CONDITIONS

SCOPE OF SERVICE: The CONTRACTOR agrees to provide the CLIENT, with security services, as indicated in the Security Plan.

1. **GOOD STANDING AS INDEPENDENT CONTRACTOR:** The CONTRACTOR shall maintain its good standing as a qualified competent service firm, legally and financially capable of acting as an independent contractor.

2. **SECURITY PERSONNEL:** The CONTRACTOR shall assign to the CLIENT seven (7) qualified and experienced security personnel, to perform or render the services contracted under this agreement, on a twelve-hour-shift work schedule.

3.1 **ADDITIONAL SECURITY PERSONNEL:** When business exigency requires, the CLIENT may request the CONTRACTOR for additional security personnel.

3.2 **RELIEVER/ REPLACEMENT:** The CONTRACTOR shall make available at all times relievers or replacements for the regularly assigned personnel who may be absent or unable to perform the services contracted, for any reason whatsoever, in order to ensure continues and uninterrupted security service. The CLIENT reserves the right to request in writing, for the replacement of any security personnel and the CONTRACTOR shall replace the same within five (5) days from receipt of such request.

3.3 **CONTRACTOR'S NON-LIABILITY:** All security personnel assigned by the CONTRACTOR to the CLIENT shall render only such agreed security and related services within the premises of the CLIENT's office or establishment. Should the client, or

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any of its officer or employee, ask or demand the assigned security personnel to perform render non-security services, within or outside the premises of the CLIENT's office or establishment, the CONTRACTOR shall not be responsible for any resulting damage or loss therefrom.

3.4 SUPERVISION OVER THE SECURITY PERSONNEL: The CONTRACTOR shall maintain effective supervision and control of all its personnel and shall require them to report promptly at designated hours.

3.4.1 DISCIPLINARY ACTION: The CONTRACTOR shall have the sole responsibility to impose disciplinary action upon said personnel, which disciplinary action, includes, but is not limited to suspension and termination. For this purpose, the CLIENT shall report to the CONTRACTOR any untoward act, negligence, misconduct malfeasance, misfeasance or nonfeasance of any of its personnel. Should the client find any of the CONTRACTOR's personnel undesirable or with unsatisfactory performance, the CONTRACTOR shall, upon written request of the CLIENT, replace the personnel concerned with one acceptable to the CLIENT. Moreover, should any of said personnel perform any act which is prejudicial to the interest of the CLIENT or should any of the said personnel be found to be incompetent or negligent in the performance of his functions, the CONTRACTOR shall immediately replace such personnel, at its own instance, or at the request of the CLIENT; Provided, that the undue refusal of the CONTRACTOR to discharge the personnel concerned shall give the CLIENT to the right to outrightly bar said personnel from rendering any further service.

3.4.2 WEARING OF UNIFORM AND ID: The CONTRACTOR shall ensure that the assigned security personnel shall, at all times, wear the presentable attire while deployed or rendering security services for the CLIENT. They shall also wear temporary identification cards to be provided by the CONTRACTOR.

3.5 COMPLIANCE WITH LABOR STANDARDS: The CONTRACTOR shall comply with all laws, rules and regulations pertaining to labor and employment, which are in effect or which may hereafter be enacted, including the payment of wages, allowances, bonuses, and other fringe benefits, and for any injuries that may be sustained by the said personnel whether caused him/ her or third parties, and whether or not such injury, death or claim arises out of or is in any way connected with performance of the personnel's duties. With respect to the payment of the Paternity Leave pay of the security personnel, the same shall be for the account of the CLIENT.

3.6 CONTRACTOR'S LIABILITY FOR LOSS AND DAMAGES: The CONTRACTOR shall be liable for the losses and damages which the CLIENT's property and facilities may suffer, as a direct result of the fault or negligence of the CONTRACTOR and/ or of the security personnel assigned to the CLIENT. Provided further, that the lost or damage items shall be properly itemized by the CLIENT and CONTRACTOR. Provided, finally that, the CLIENT shall report the matter to the CONTRACTOR within twenty-four (24) hours after discovery.

4. CONSIDERATION: For and in consideration of the faithful service and performance by the CONTRACTOR of its obligations under this contract, the CLIENT shall pay the amount of **Two Million Seven Hundred Eighty-Seven Thousand Four Hundred Four Pesos & 77/100 (Php 2,787,404.77)** for a period of twelve (12) months (February 1, 2024 to January 31, 2025). The payment of which will correspond to the billing rate that is submitted by the CONTRACTOR. The billing rates include payments due to the employee and the government, administrative cost and value added tax of twelve percent (12%).

4.1 AFFIDAVIT OF PAYMENT OF ALL MANDATORY CONTRIBUTIONS: The CONTRACTOR shall submit to the CLIENT an AFFIDAVIT certifying that the CONTRACTOR has duly paid all its personnel's wages, mandatory contributions and other benefits as required by the Labor Code, Social Security Act, State Insurance Fund,

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PAG-IBIG, PHILHEALTH, ECC, Retirement Benefits, if any and other pertinent and applicable laws, rules and regulations on a monthly basis.

4.4.1 RATES ADJUSTMENT: The rates, however, shall be adjusted in case of mandated wage increase, benefits and other charges. It is understood that the adjustment in billing rates will include proportionate increase in administrative cost. All bills shall be paid within fifteen (15) calendar days from receipt thereof.

4.2 PAYMENT OF MONTHLY WAGES: The CONTRACTOR shall be solely responsible for the payment of the employees' monthly wages which shall be paid at the 10th and 25th of the month.

5. DURATION OF CONTRACT: This agreement shall be valid for a period of twelve (12) months from February 1, 2024 to January 31, 2025 and shall be deemed automatically renewed on a month to month basis thereafter, under the same terms and conditions, unless the parties agree to renew this agreement for a longer period, or upon service by the CLIENT at appropriate termination notice to the CONTRACTOR.

6. TERMINATION OF CONTRACT: This contract may be terminated in case of violation by either party of any of the terms and conditions of this Contract. The party desiring termination of the Contract shall give at least thirty (30) days prior written notice to the other party. Termination shall be effected immediately thereafter and after the parties shall have agreed on the settlement of any of the obligations one may have with the other.

6.1 LIABILITY FOR DAMAGES: The termination of this Contract is without prejudice to the liability of either party for damages that may be incurred hereunder.

7. NON-WAIVER OF RIGHTS: The failure of ANY OF THE PARTIES to strictly implement the terms of this Contract shall not be deemed as a relinquishment or waiver of any right or remedy that they may have hereunder nor shall the same be construed as a waiver of any subsequent breach or violation of any of the terms and conditions herein contained. A waiver by any of the parties shall be deemed made if the same is expressed in writing and duly signed by the herein parties.

8. ASSIGNABILITY OF RIGHTS: The CONTRACTOR shall not assign any of its rights or undertakings under this agreement, in the event of merger, acquisition, assignment, conveyance or other similar dispositions made or entered into by the CONTRACTOR, unless with the prior written notice to and upon approval of the CLIENT.

9. SETTLEMENT OF DISPUTES: All actions and controversies that may arise from this Contract shall be brought before the proper court of Batangas City, Province of Batangas.

10. EFFECTIVITY: This Agreement shall take effect upon signing of all the Parties.

IN WITNESS WHEREOF, herein parties affixed their signatures on _____, at _____.

FOR: PENRO BATANGAS

(Client)

BY: NOEL M. RECILLO
OIC/PENR Officer-Batangas

FOR: DELTA MAROON SECURITY
AGENCY CORP

(Client)

LIZA S. CASTILLO
CEO/President

SIGNED IN THE PRESENCE OF:


LUNINGNING R. MORALES, Ph. D
Chief, MSD

FUNDS AVAILABLE:


EDEVERLENE C. DOTIG
AO IV/ BUDGET OFFICER


LERMA M. ADARLO
ACCOUNTANT III

ACKNOWLEDGEMENT

Republic of the Philippines)

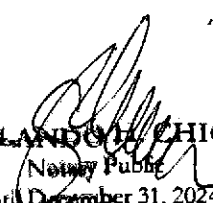
CALAMBA CITY) S.S

BEFORE ME, personally appeared and exhibited their respective valid and competent proofs of identification, the above-mentioned PARTIES, who represented to me to be the same persons who executed the foregoing instrument and acknowledged to me that the same as their free and voluntary act and deed for the purpose therein set forth.

I further certify that this instrument consisting of five (5) pages, including the page on which this acknowledgement is written, has been signed on each and every page thereof by herein parties and their witnesses, and pertains to CONTRACT OF SECURITY SERVICES.

WITNESS MY HAND AND SEAL, on JAN 26 2024 at
CALAMBA CITY.

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Book No. 23
Series of 2024


ATTY. ROLANDO H. CHIONG, JR.

Notary Public

Until December 31, 2024

PTR Nos. 8296016, 01-022024 Calamba City

Roll No. 31958, IBP OR No. 180754, 12-09-2022

Chiong Law Office, Calamba City, Philippines

TIN-116-095-254 Not. Com. No. 11-2023-C

MCLE Completion - VII - No. 0017987, 04-14-2025